

Clerical Subscription and the Act of Uniformity

Edward Hoare

The background of the lower half of the image is a complex, abstract pattern of overlapping geometric shapes. These shapes include triangles, squares, and circles, some of which are filled with a solid purple color, while others are outlined in a lighter blue or purple. The pattern is dense and creates a sense of depth and movement.

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SUBSCRIPTION AND THE ACT OF UNIFORMITY ***

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CLERICAL SUBSCRIPTION AND THE ACT OF UNIFORMITY.

BY THE
REV. EDWARD HOARE, M.A.,
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CLERICAL SUBSCRIPTION AND THE ACT OF UNIFORMITY.

As it has pleased Her Majesty to appoint a Royal Commission to consider the subject of Clerical Subscription, the time has clearly come when those who regard the principle of Subscription to be one of essential importance to the well-being of our Church should consider carefully by what arrangements that principle may be best maintained and carried out. It is the opinion of many that the wisest course is to endeavour to secure the present system without alteration, and earnestly to oppose any change of any kind whatever. Under many circumstances, I could believe in the wisdom of so doing; but if it can be shown that there are great objections against the present practice, then I think that, for the sake of the principle, we ought to be prepared to receive with gratitude such a change as may remove well-grounded and reasonable objections. The principle and the practice are so intimately connected in people's minds that they are almost sure to stand and fall together; so that if there is any great defect in the practice, there is danger of the principle being made to bear the blame of it; and if the practice is such as to give reasonable dissatisfaction to reasonable men, it is almost sure to weaken the hold which the principle has on the public mind. On these grounds I am anxious to call the attention of those Churchmen who believe in the importance of the principle of Subscription to the practice as at present imposed by the Act of Uniformity on the beneficed clergymen of the Church of England; and I do so under the very strong conviction that, in order to maintain the principle and, I might almost add, on every other ground, there should be an united endeavour amongst English Churchmen without delay to effect a change.

My reasons are as follows:—

(1.) The Subscription, as now required of all incumbents, is required not by the Church, but by the State. The Church of England is in no sense responsible for it, having never either sought or sanctioned it. As the Church of England has always held the principle of Subscription, so it has provided a form. This form was first prepared in Convocation, and then sanctioned by James I., by virtue of his prerogative royal, and supreme authority in causes ecclesiastical.

This is the form embodied in the thirty-sixth Canon, and is as follows:—

I. That the King's Majesty, under God, is the only supreme Governor of this Realm, and of all other his Highnesses dominions and countries, as well in all spiritual or ecclesiastical things or causes as temporal; and that no foreign prince, person, prelate, state, or potentate hath, or ought to have, any jurisdiction, power, superiority, pre-eminence, or authority, ecclesiastical or spiritual, within his Majesty's said realms, dominions, and countries.

II. That the Book of Common Prayer, and of ordering of bishops, priests, and deacons, containeth in it nothing contrary to the Word of God, and that it may lawfully so be used; and that he himself will use the form in the said book prescribed, in publick prayer, and administration of the Sacraments, and none other.

III. That he alloweth the Book of Articles of Religion, agreed upon by the archbishops and bishops of both provinces, and the whole clergy in the Convocation, holden at London, in the year of our Lord 1562; and that he acknowledgeth all and every the articles therein contained, being in number nine-and-thirty, besides the ratification, to be agreeable to the Word of God.

But the Church's form was too temperate for the vindictive spirit of Charles II. and his Parliament; and therefore, without consulting the Church at all, the King's Majesty, with the consent of the Lords and Commons, enacted a new form of Subscription, and imposed it on all those who either held any benefice at the time, or should hereafter be presented to one. No one, therefore, need fear that his allegiance to the Church would be in any manner compromised by his disapprobation of the form of Subscription

required by the Act of Uniformity; for the Church has never had anything to do with it beyond bearing the blame. It is a test imposed on Churchmen by Act of Parliament, without the concurrence of the Church itself, and virtually supersedes the form which the Church has provided. It appears to me, therefore, that loyalty to our Church would lead us respectfully to petition for the repeal of the Parliamentary enactment, that so our Church may be permitted to carry out her own principles, and make use of the form deliberately drawn up by Convocation, and sanctioned by the Crown.##

(2.) It is impossible to prove a negative; and I may be mistaken: but I am not able to discover that such a form of Subscription as that required by the Act of Uniformity was ever known in the whole history of Christendom. Churches, one after another, have drawn up Confessions of Faith, and employed them as tests of opinion in the admission of their ministers. Most Churches have prepared liturgical forms for devotional purposes, and required the use of these forms in public worship. The Confession of Faith has been carefully drawn up for one object, and the Liturgy for another; the one to secure sound doctrine, and the other pure devotional worship. So the Church of England, in *its* form of Subscription, has kept the distinction perfectly clear. It requires the new incumbent to subscribe “that he alloweth the Book of Articles to be agreeable to the Word of God,” thereby giving a positive acknowledgment of their truth. But of the devotional book, the Book of Common Prayer, it requires him to sign,—“That it containeth in it nothing contrary to the Word of God, and that it may lawfully so be used, and that he himself will use the form in the said book prescribed, in publick prayer and administration of the Sacraments, and none other.” The Book of Articles is employed as a Confession of Faith, or test of opinion; whereas all that is required respecting the Book of Common Prayer is the promise to use it, with the declaration that there is nothing wrong in so doing. But this temperate spirit of the Church was not sufficient for the purposes of Charles and his Parliament. The persons whom they wanted to turn out believed in the Articles, and were, many of them, quite willing to use the Prayer-book. Thus the Church’s principles were insufficient for their ejection, and, in order to get rid of them, the plan was devised of omitting all specific mention of the Articles, and making use of the whole book as the test or confession of faith. A long devotional book of 400 pages, containing prayers, Psalms as pointed for chanting, rubrics, addresses, and special

services, some of which can be used by the Bishops only, are all massed together, and made into a new exclusive creed. There is no exception made for anything. "All and every thing" is alike included, and the language is made as stringent as possible. It is as follows:—

"I, A. B., do hereby declare my unfeigned assent and consent to all and every thing contained and prescribed in and by the book intituled, The Book of Common Prayer, and Administration of the Sacraments, and other Rites and Ceremonies of the Church, according to the uses of the Church of England; together with the Psalter, or Psalms of David, pointed as they are to be said or sung in Churches; and the form or manner of making, ordaining, and consecrating of Bishops, Priests, and Deacons."

Never, I believe, was a more flagrant misuse of any document. The book was prepared for one purpose, and then, for party ends, employed for another. Prayers were made into creeds; the pointing of the Psalms into a test of opinion; and rubrics into confessions of faith. Fortunately, there is wonderfully little in the book, taken as a whole, to wound the conscience of those who subscribe to the Articles. But that is not the point. The real question is, whether prayers, pointings, rubrics, &c., should be employed as creeds. My own belief is, that they never ought to be; for, if there is the accuracy of the creed, there cannot be the devotional warmth of the prayer; that they never have been, except in this instance; and that they would not have been, even in 1662, had it not been for the spirit of retaliation, which, unhappily, induced the King and Parliament to agree in passing the Act of Uniformity.

(3.) But as the form of Subscription is Wrong in principle, so to many conscientious minds it becomes painful in practice.

In a long devotional book it is next to impossible that all and everything should be exactly to the mind of any one, and of all the thousands of clergymen who regard the Liturgy as amongst the most sacred possessions ever given to a Church I believe there are very few who would not rejoice over a slight change here and there, if only they could be sure that no changes which they disapproved would be introduced with those they would approve. Looking at the book in its comprehensive character, as

containing a Calendar of Lessons, a vast number of rubrics, the Psalms pointed for chanting, and several occasional services, it is vain to expect that every point of detail shall be exactly to the mind of any man. However decided the general approval, there must of necessity be points of detail which grate, to say the least, on the feelings, if they are not opposed to the judgment. Thus there are many persons who believe that there is nothing contrary to God's Word in the Prayer-book, and that it may be lawfully used, who still consider that "assent and consent to all and every thing" is too strong a term to express their state of mind respecting it. The result is that some are deterred from entering the ministry, others decline or resign preferment; while many others would consider it a great relief if the form in the Canon were substituted for that in the Act of Parliament.

(4.) But there is another objection of a much graver character, and one which, in these days of loose opinion, is, I believe, far more important than any already mentioned. By the confusion of the Articles and the ritual in one form of Subscription the door is opened for great laxity as to doctrine.

To meet the difficulty which conscientious persons may feel with reference to the ritual, our Church, in the preface, claims for the book that it shall "be allowed such just and favourable construction as in common equity ought to be allowed to all human writings, especially such as are set forth by authority." It is supposed, therefore, by the Church, that each clergyman will put his own favourable construction on the details of the book, which, as a whole, he greatly values; and, provided that he does not consider any portion contrary to God's Word, she is prepared to entrust him with the use of it in the public ministry. Now, such a principle as this is all very well with reference to forms, but becomes inexpressibly dangerous when applied to doctrines. It is only right that men should be allowed to entertain their own opinion respecting the selection of lessons in the calendar; but the very life of the Church is imperilled if we admit a similar latitude respecting the essential truths of Christianity. Thus, the Act of Uniformity, by confusing the two in one form of Subscription, practically opens the way for laxity of religious belief. It puts those who do not believe in the Thirty-nine Articles in the same position as those who think that mistakes have been made in the calendar, or that the mind of the Church would be better expressed if two or three sentences amongst the occasional services were omitted or slightly modified. The favourable construction which is necessary for a

comprehensive ritual is claimed equally for the confession of faith, and the denial of revealed truth is placed on the same level as a scruple about a rubric. To the mind of Charles and his advisers I am inclined to think that the two were of equal importance, or possibly the forms were more important than the doctrines. But men of all classes are now, thank God, waking up to the conviction that all matters of ritual are as nothing when compared with the truth as revealed in Scripture; and it is lamentable to think that those who deny such a doctrine as the Atonement should be no more condemned by their Subscription than are those conscientious men who are made uncomfortable by a few trifling matters in the ritual.

The conclusion, therefore, is that, just in proportion as we value Divine truth, we should endeavour to fall back on the wisdom of our forefathers, who kept the two things quite distinct; and that there ought to be two forms of Subscription, as directed by the Canon, instead of one, as required by the Act of Uniformity; that so our adhesion to the great scriptural and essential truths of the Gospel may stand out, as the Church has placed it, quite distinct from our approbation of the various details of the ritual.

But it is frequently argued that, if we touch any portion of the Act of Uniformity, the whole would be endangered; and it is regarded as so sacred a bulwark around the truth that no risk must be incurred respecting it.

Now, I believe that this respect for the Act of Uniformity arises simply from the fact that no one reads it. The greater part has long since become a dead-letter, and if the whole were swept away our position would be very slightly changed. The following is a short summary:—

1. That the Book of Common Prayer as revised in 1660 should be used instead of that of Edward VI.
2. That all parsons, vicars, or other ministers should subscribe, according to the form above given, before the Feast of St. Bartholomew, 1662; or within one month be deprived, *ipso facto*, of their spiritual promotions.
3. That every person who may hereafter be presented to any living make the same Subscription.
4. That every resident incumbent, where a curate is kept, read the common prayers and service at least once a month, or forfeit 5*l.* to the poor of the

parish, on conviction before two justices of the peace.

5. That all deans, canons, &c., and even tutors in private families, shall subscribe a declaration against rebellion, a promise to conform to the Liturgy, and until the year 1682 a renunciation of the Solemn League and Covenant.

6. That no person shall act as schoolmaster or private tutor in any family without a licence from the Bishop, and that any person teaching without a licence shall be liable to imprisonment for three months and a fine of 5*l*.

7. That no person shall be admitted to any benefice who is not in holy orders by episcopal ordination; or administer the Sacrament of the Lord's Supper unless he be ordained priest by episcopal ordination, upon pain of a penalty of 100*l*.

8. That the penalties in this Act shall not extend to foreigners or aliens of the Foreign Reformed Churches allowed, or to be allowed, by the King's Majesty, his heirs and successors in England.

9. That all heads of colleges read the Morning Prayer in their college chapel at least once in every quarter, upon pain to lose and be suspended of and from all benefits and profits belonging to the same Government or Headship by the space of six months.

10. That all lecturers or preachers shall, on their admission and on the first lecture day in every month afterwards, read the prayers for the time of the day, and shall afterwards declare their unfeigned assent and consent to the Book of Common Prayer according to the prescribed form; that if they neglect to do so they shall be disabled to preach the said or any other lecture; and that if they preach when so disabled they shall suffer three months' imprisonment in the common gaol without bail or main-prise.

11. That whenever a sermon or lecture is to be preached the common prayer and service for that time of the day must be read.

12. That previous statutes be not repealed.

13. That the parishioners of the several parishes procure copies of the Prayer-book before the Feast of St. Bartholomew, 1662.

14. That the Book be translated into Welsh.
15. That provision be made for the preservation of the Book in Cathedrals and other places.
16. That the Thirty-sixth Article be understood as applying to the book mentioned in this Act as it did heretofore to that of Edward VI.
17. That the form of prayer heretofore in use shall remain so until the Feast of St. Bartholomew, 1662.

Now what is there in all this that is worth preserving? and what barrier does it present against the inroads of error? The greater part was intended only for the day, and had done its work before the close of the year 1662. Of the remainder there is very little which has not long since fallen into abeyance. Rectors are never fined 5*l.* if they fail in reading prayers once a month. Tutors in private families never subscribe any declaration against rebellion, and are never imprisoned for teaching without the licence of the Bishop. Heads of Colleges are neither suspended nor deprived if they fail to read prayers once a quarter in their college chapels. Lecturers never repeat their declaration of assent and consent on the first lecture day in each month, and yet are never imprisoned. And the Litany is constantly used even by our Bishops in the place of Evening Prayer. All that we want to preserve as of present and practical importance is the adoption of the Liturgy as revised in 1660, and the necessity of Episcopal ordination. For aught I know these may be secured by other statutes; but if not, there would be no difficulty in securing them, though the whole Act of Uniformity were repealed. Or if it is thought desirable that so celebrated an Act of Parliament ought to be preserved as a curious specimen of bygone vindictive legislation, let an amendment be introduced substituting the form of Subscription in the Canon for that required by the Act. If this were done, the Church would be permitted to guard its ministry according to its own principles; many tender consciences would be relieved, and an important step would be taken towards the attainment of the great object of Her Majesty's Commission, viz., the simplification of Clerical Subscription "consistently with due security for the declared agreement of the clergy with the doctrines of the Church, and conformity to its ritual."

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